years after they cease operating. The Government decided not to pursue its prior appeal.[+]

Short Accounts

PERSPECTIVES OF AIR LAW, SPACE LAW, AND INTERNATIONAL BUSINESS LAW FOR THE NEXT CENTURY

On June 7 through 9, 1995, the Institute of Air and Space Law of the University of Cologne together with the Chair for International Business Law of the same University hosted a Colloquium on "Perspectives of Air Law, Space Law, and International Business Law for the Next Century," in order to celebrate the 70th anniversary of the Cologne Institute of Air and Space Law and the 20th anniversary of the Chair on Business Law. The present Director of the Institute and Holder of the Chair, *Professor Dr. K.H. Böckstiegel*, welcomed all speakers and participants with a reception on the evening of June 7.

The Colloquium itself consisted of eight sessions. For those involved in space law, the second session on the "Future Perspectives of Space Law" was of great interest. The session was chaired by *Judge Gilbert Guillaume*, Judge of the International Court of Justice, who had also chaired the previous session on air law. In his introductory remarks on the subject, Judge Guillaume pointed out the many similarities to be detected when studying air law and space law respectively, be it of course that space law, as a branch some fifty years younger than air law, was in a far more early stage of development. He mentioned the issues of privatization of relevant activities, of liability for damage both to innocent third parties and to others active in the field, and of the prevailing need for international cooperation in view of the inherent worldwide character of both disciplines in this respect.

This analysis, as it where, related particularly well to one presentation at the air law session. There, *Professor Dr. H.A. Wassenbergh*, Chairman of the Leiden Institute of Air and Space Law and Former Senior Vice President of KLM Royal Dutch Airlines, had drawn several comparisons with space transportation law in his presentation on "The Future of International Air Law." Professor Wassenbergh, in this respect, stressed the need for international legal regimes less depending on the national sovereignty of states, to the extent that such dependencies were usually prone to be (ab)used for purposes not enhancing the beneficial growth of the sector under consideration.

In the space law session itself, the first presentation was made by *Dr. N. Jasentulyana*, Director of the Office for Outer Space Affairs of the United Nations and President of the International Institute of Space Law of the IAF. Dr. Jasentulyana first discussed the general tendency prevailing in space law in moving from the exploration of outer space to the practical use thereof. He referred in this light to space debris, commercial uses of

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[+] For prior details, see 23 J. SPACE L. 80 (1995).

space such as mining and materials processing, intellectual property rights, transfer of technology, space stations, manned space flights and space transportation systems. Space law from this perspective will continue to be formulated primarily within the context of the United Nations.

The second speaker was *Professor Dr. He Qizhi*, Ambassador of the People's Republic of China and Member of the International Law Commission. He spoke on the "Prospects of Asia-Pacific Cooperation". After outlining the common needs and objectives of East Asian states in (further) international cooperation, he discussed the embryonic form of an Asia-Pacific Space Organization which had resulted from various recent regional conferences. With regard to the emerging legal framework of the Organization, he specifically dealt with the core objectives of such a venture, the space programs to be brought under its *aegis*, the institutional and financial arrangements, and finally the legal status of the Organization-to-be.

As the third panelist, *Mr. F.G. von der Dunk*, Co-Director of the Leiden Institute of Air and Space Law, held a presentation entitled "Space for Space Law?", in which he discussed the developments concerning the growing involvement of private enterprise and the consequence thereof for the future of space law. He saw an increasingly fragmented focus of the body of laws dealing with space in this respect. While the justified interests of private enterprise should be taken account of, the role of space law as an overarching regime for everything occurring in the realm of outer space should be defended. Only if that challenge is successfully met, the speaker contended, will there continue to be space for space law, and will space continue to be a matter for space law.

As to the remaining sessions, especially the point raised by *Dr. S.E. Doyle* from the United States in the discussion following the sessions on "Free Market and Regulation" and "Regional Integration" should be mentioned. On the issue of private enterprise's involvement in the framework of regional integration, he detected a surprising measure of similarity (especially in Europe) between the field of aviation and the field of telecommunications. The same issues of free market access versus protection of national and public utility interests, of using sovereignty for economic purposes, of trying to define and formulate free competition, are at stake.

Another presentation of interest for the present readers was the one held by *Professor Dr. M. Williams*, of the University of Buenos Aires, whose paper dealt with the "Protection of the Environment", *inter alia* with the legal aspects of space debris. In this respect, she discussed some of the provisions contained in the Buenos Aires International Instrument on Space Debris, adopted in August 1994 by the 66th Conference of the International Law Association, implying a significant development of the law in this field.

Finally, it should be mentioned that *Professor K.H. Böckstiegel* in his presentation on "Common Perspectives of Air-, Space- and International Business Law Regarding Settlement of International